

25STCV33207 25STCV33207

County: los-angeles

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Case Number: 25STCV33207 Hearing Date: September 24, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

ACKEE BAMBOO JAMAICAN CUISINE LLC

vs.

COMMUNITY BUILD, INC.

Case

No.: 25STCV33207

Hearing Date: September 24, 2026

Defendant's demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND, as to the sixth and seventh causes of action, but OVERRULED as to the remaining claims. Defendant's motion to strike is denied.

On 11/13/2025, Plaintiff Ackee Bamboo Jamaican Cuisine (Plaintiff) initiated this action against Defendant Community Build, Inc. (Defendant). On 4/17/2026, Plaintiff filed a first amended complaint (FAC), alleging: (1) breach of contract; (2) breach of the implied covenant of good faith and fair

dealing; (3) breach of covenant of quiet enjoyment; (4) constructive eviction; (5) negligence; (6) private nuisance; (7) common count; (8) unfair competition.

On 5/19/2026, Defendant demurred to the FAC's second, third, fourth, sixth, seventh, and eighth causes of action. Defendant also moves to strike portions of the FAC.

Discussion

Defendant argues that Plaintiff's second, third, sixth, seventh, and eighth causes of action are insufficiently pled and run afoul of the sham pleadings doctrine.

In support, Defendant contends that the original Complaint alleged that Ackee Bamboo LLC leased the Premises and entered into the Lease with Community Build. Now, the FAC alleges that Delroy Beckford and Marlene Sinclair Beckford—not Ackee Bamboo Jamaican Cuisine LLC—entered into the Lease and were the "lessees and tenants of record."

Indeed, the parties do not dispute that the Lease expressly identifies only Delroy Beckford and Marlene Sinclair Beckford as "Lessee" and states that no other person or entity shall be deemed Lessee under the Lease. However, Plaintiff alleges that Plaintiff Ackee Bamboo Jamaican Cuisine LLC (Ackee Bamboo LLC) was the entity through which the Individual Plaintiffs operated the restaurant; that Community Build knew Ackee Bamboo LLC was operating the restaurant at the Premises; that Community Build accepted rent and performance from Ackee Bamboo LLC; and that Community Build never objected to its occupancy or operation of the restaurant. (FAC ¶¶ 2–3.)

As such, the Court agrees that Plaintiff's new allegations do not run afoul of the sham pleadings doctrine, but rather were made to correct an erroneous or imprecise characterization of the parties' respective roles, rather than invent a new contractual relationship or omit a fact that makes the action incapable of being stated truthful. (JPMorgan Chase Bank, N.A. v. Ward (2019) 33 Cal.App.5th 678, 690.)

Moreover, the Court finds that, in light of the allegations, whether or not Ackee Bamboo LLC has standing to pursue lease-based claims is a factual determination not appropriately made at the pleadings stage. (Spinks v. Equity Residential Briarwood Apartments

(2009) 171 Cal.App.4th 1004, 1032.)

The Court finds the remaining claims sufficiently pled at the pleadings stage, with the exception of the nuisance and common count claims. Plaintiff's nuisance claim is redundant of the contract claims, and the common count claim/money had and received is not applicable here as Plaintiff does not allege facts which could show a total failure of consideration. (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 230.)

Based on the foregoing, Defendant's demurrer is sustained, without leave to amend, as to the sixth and seventh causes of action, but overruled as to the remaining claims. Defendant's motion to strike is denied.

It is so ordered.

Dated:

September , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.